

23GDCV00584 23GDCV00584

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-09-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CE%2C09%2F23%2F2026

Source SHA-256: 70db1a7aac2d61b0a99c10169b03869840f00d53d6fdd32c1a53a67b675e8403

Case Number: 23GDCV00584 Hearing Date: September 23, 2026 Dept: E

/

/

/

/

The Court notes that the parties have failed to file briefs despite having requested several extensions.

The Court's tentative is to enter judgment for defense. The plaintiff's testimony regarding the time period for obtaining a Money Transfer License in New York state was vague and unsupported. No expert testified as to how long an application for the license at issue would take in New York or the relevant standard of care. The plaintiff himself acknowledged that the six-to-eight-week time frame he claims was the reasonable time frame was never represented or guaranteed by the defendants.

The relevant contractual language appears to bar claims such as this one, "except when said acts or omissions of VCM are due to willful misconduct or gross negligence." There is insufficient evidence to support any finding of willful misconduct or gross negligence here.

Even if the Court were to find that the plaintiff's speculative testimony regarding how long it should take for the application at issue to be completed in New York persuasive, the Court would find the claim fails for failure to establish damages with any level of certainty.

/

/

/

